

MEMORANDUM OF UNDERSTANDING

ELECTRONIC CONTRACT: This document is an electronic record generated by a computer system under the Information Technology Act, 2000. It does not require physical or digital signatures. By clicking "I AGREE", registering on this portal, or using the services, you enter into a legally binding contract with the First Party.

This Memorandum of Understanding (the "MOU") is entered into digitally on the date of successful user registration (the "Effective Date") by and between:

FIRST PARTY:

HRM CONSULTANCY - DOCTORS CHOICE, having its official corporate address at Om 14/2 Bajrangwadi, Nr. Bajrangwadi Circle, Jamnagar Road, Rajkot, Gujarat, Pin – 360007, India, represented by its authorized executive dashboard (hereinafter referred to as the "First Party" or "Consultant").

AND

SECOND PARTY (USER 2):

Any registered corporate entity, hospital, clinical facility, HR professional, Recruiter, Director, or Chief Executive Officer (CEO) who completes the digital signup form on this portal and accepts these terms (hereinafter referred to as the "Second Party" or "User 2").

1. DIGITAL PLATFORM ACCESS & MANDATORY REGISTRATION

1.1 Conditional Access: User 2 explicitly acknowledges that access to the HRM Consultancy platform, candidate database, and automated WhatsApp group messaging streams is strictly conditional upon completing full registration.

1.2 Verification Check: First Party reserves the absolute right to audit, block, or freeze any registered account of User 2 if company coordinates, PAN, or operational details provided during signup are found invalid or unverified.

1. NATURE OF SERVICES

2.1 Search & Sourcing: First Party shall map, screen, and introduce professional personnel and candidates for vacancies raised by User 2 through the web dashboard or linked corporate tools.

2.2 Operational Communication: All feedback, interview scheduling, profile pipeline coordination, and updates leading to the candidate's eventual onboarding must be routed systematically through the designated platform channels.

1. COMMERCIAL FEE FRAMEWORK (MODEL 1)

3.1 Sourcing Recruitment Fee: Upon the successful hiring of any candidate presented by the First Party, User 2 shall pay a standard recruitment fee equivalent to one month's gross salary (100% of Monthly CTC) plus an additional 18% operational service charge.

3.2 Alternate Placement Validity: If User 2, its parent group, or associate companies hire a candidate profile introduced by the First Party for any secondary or alternate position within three (3) months of profile transmission, the standard recruitment fee remains fully payable.

3.3 Candidate Duplication Rules: If User 2 receives an identical candidate profile from multiple external recruitment channels, a clear written or digital sign-off from the candidate confirming their primary representative agency shall serve as the final authority for invoice processing.

1. INVOICING MILESTONES & DIRECT REFUND PROTECTION

4.1 Settlement Terms: User 2 shall settle verified invoices within 15 days from the physical or digital Date of Joining (DOJ) of the candidate, or within 15 days of invoice generation, whichever milestone occurs earlier.

4.2 Statutory TDS: Payments are subject to statutory deduction of Tax Deducted at Source (TDS) under applicable provisions of the Indian Income Tax Act, 1961.

4.3 30-Day Early Exit Clause: In the event that a selected candidate leaves, resigns, or ceases employment within 30 days of joining, the First Party shall not provide any replacement candidate.

4.4 Direct 80% Refund Rule: Upon validation of the early exit within the 30-day window, an 80% monetary refund of the billed fee shall be processed and paid directly back to User 2 within five (5) business days. The remaining 20% shall be permanently retained by the First Party as a non-refundable operational service charge.

1. DATA PRIVACY & MANDATORY COMPLIANCE

5.1 Data Protection: User 2 shall strictly comply with the Digital Personal Data Protection (DPDP) Act, 2023 concerning candidate resumes, contact coordinates, Personally Identifiable Information (PII), and salary breakdowns accessed on this portal.

5.2 Confidentiality Retention: Neither party shall share, download for external commercial reselling, or distribute the terms of this operational engagement to unrelated third parties without prior mutual written authorization.

1. GOVERNING LAW & JURISDICTION

6.1 Dispute Resolution: Any dispute, difference, or claim arising out of or in connection with this digital MOU shall first be addressed through amicable reconciliation.

6.2 Jurisdiction Matrix: Unresolved legal disputes shall be subject to the exclusive jurisdiction of the competent courts located in Rajkot, Gujarat, India.

HRM CONSULTANCY
- DOCTORS CHOICE
M.B. Parmar
PROPRIETOR